
Appeal Decision

Site visit made on 29 July 2026

by B Pattison BA (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 09 September 2026

Appeal Ref: 6005150

Land opposite Manor House, Manor Cottage, Headley Common Road, Headley, Surrey KT18 6NA

Grid Ref Easting: 520772, Grid Ref Northing: 154108

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mary Jane Palmer against the decision of Mole Valley District Council.
 - The application Ref is MO/2024/1318.
 - The development proposed is Change of use and conversion of existing redundant stables to one bedroom dwelling.
-

Decision

1. The appeal is dismissed.

Preliminary Matter

2. On 17 August 2026, Government published a revised National Planning Policy Framework (the Framework). This included revisions to policies that are pertinent to the appeal, such as those relating to development in the Green Belt. During the appeal the main parties were invited to comment on the relevance of the revised Framework to the appeal proposal. In my decision, I have had regard to the written responses.

Main Issues

3. The main issues are:
 - whether or not the proposal would be inappropriate development within the Green Belt having regard to the Framework and any other relevant development plan policies;
 - whether the site is a suitable location for the proposal having regard to local and national planning policy, and the accessibility of the site to services, employment opportunities and facilities;
 - whether the future occupiers of the proposal would have acceptable living conditions;
 - whether the proposal would secure satisfactory Biodiversity Net Gain (BNG); and
 - if the appeal scheme is found to be inappropriate development, whether the harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations so as to amount to the very special circumstances needed to justify the development.

Reasons

Whether or not inappropriate development in the Green Belt

4. The appeal site is a parcel of land which contains a stables building and two storage containers. Adjacent to the site, but within the appellant's ownership is a sand school. The gated access to the site fronts a private single track road which leads from Headley Common Road. It is located within the Metropolitan Green Belt and an Area of Great Landscape Value (AGLV).
5. Chapter 13 of the Framework identifies that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential characteristics of Green Belts are their openness and their permanence. Policy GB6.2. of the Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
6. Policy EN1 of the Mole Valley Local Plan (2024) (LP) outlines exceptions to the definition of inappropriate development which will be permitted where they comply with other relevant policies in the LP. One exception is the re-use of existing buildings which are of permanent and substantial construction, provided the physical changes and associated uses and activity would preserve the openness of the Green Belt and not conflict with the purposes of including land within it.
7. Policy GB7.1 of the Framework similarly outlines a number of categories of development which are not inappropriate development in the Green Belt. Of relevance to the proposal, within Policy GB7.1.b. is the reuse, extension, alteration or replacement of an existing building, provided that it is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building. This exception is broader than that contained within Policy EN1 of the LP. In particular, it does not require an assessment of the proposal's impact on the openness of the Green Belt. Consequently, there is a conflict between the LP policy and the Framework.
8. The appeal site's planning history indicates that the appeal building has been in situ for a number of years. For this reason, I find that the proposal would involve the re-use of a building that is of a permanent and substantial construction. Whilst the re-use of the building would entail a number of physical alterations, which could include a replacement roof, there would be no extension to the building. Consequently, the proposal would not result in a disproportionate increase to the size of the building.
9. The introduction of a dwelling at the appeal site would likely to see an increase in domestic paraphernalia in terms of refuse storage, facilities for drying clothes, and garden furniture. However, these moveable items would not amount to operational development which could be considered a disproportionate increase to the original building.
10. I note that Policy EN1 requires an assessment of the proposal's effect on openness. Openness is an essential characteristic of the Green Belt that has a spatial as well as visual aspect. Due to its limited scale, the domestic paraphernalia would have a limited visual and spatial effect on openness. However, Annex A of the Framework confirms that development plan policies (or

parts of those policies) which are materially inconsistent with national decision-making policies in the Framework should be given very limited weight.

11. Given the very limited weight that can be attached to the proposal's limited effect on openness, I find that the development would not constitute inappropriate development in the Green Belt as defined by the Framework. Accordingly, it would accord with the Framework's approach to development within the Green Belt and with Policy EN1 of the Local Plan, insofar as the policy seeks to safeguard the Green Belt from inappropriate development.
12. As I have found that the proposal would not be inappropriate development in the Green Belt by virtue of policy GB7.1.b. of the Framework, it is not necessary for me to consider whether it would accord with policy GB7.1.g of the Framework as this would not alter my findings. As a further consequence, I also do not need to consider whether there are other considerations and whether they amount to very special circumstances to justify the development.

Suitable location

13. Policy S1 of the LP sets out the strategic approach to the location of residential development. It identifies that the urban areas of Leatherhead and Dorking are the principal focus for development together with the development of allocated outdated office complexes in Ashted and Dorking, as well as a variety of released sites within the Green Belt. The appeal site does not fall within any of the areas outlined within Policy S1.
14. The LP Settlement Hierarchy identifies Headley as a Tier 5 settlement. Such settlements are described as having poor levels of services and infrastructure and are therefore considered unsuitable for development.
15. Given its location along a private road, the appeal site is physically distinct from the core of the village of Headley, located 750 metres away (as the crow flies). Headley offers a limited range of services, including a public house, cricket pitch, church, local shop and village hall. There are also a number of local community groups. However, this provision is unlikely to meet the day-to-day needs of future occupiers, who would likely need to travel further afield for essential goods and services.
16. To access these services and facilities particularly within settlements such as Leatherhead, Ashted and Dorking, future occupiers of the proposed dwelling would have to walk or cycle along the remote, narrow rural lanes, which are unlit, often involve inclines and which would be less attractive routes outside daylight hours and in inclement weather. The nearest train stations at Betchworth and Box Hill & Westhumble are located several miles from the appeal site which is likely to make this mode of transport an unappealing choice without the use of a car.
17. Whilst I note that there are a range of schools in nearby settlements, and a specific bus service to a local school, it seems unlikely to me that a one bed house would be home to school age children.
18. Due to the small scale of the proposal, there would not be a significant impact on the transport network. However, for the reasons given, essential services, facilities and employment opportunities would not be readily accessible from the appeal site. Therefore, the occupants would be largely reliant on private vehicles to

access essential services and facilities, due to the lack of safe pedestrian and cycle routes and having limited options for alternative modes of transport. Consequently, the appeal site is not within a sustainable location.

19. I acknowledge that the appeal site is located near to existing dwellings along the private road to The Manor House. Given its proximity to existing dwellings, the appeal site is not isolated in the context of Policy HO11 of the Framework, which sets out that new isolated homes should be avoided in the countryside. However, the appeal site's lack of isolation with regard to paragraph Policy HO11 does not mean that the site would be reasonably accessible to services and facilities when considered in the context of other requirements of the Framework.
20. As such, the appeal site would not be a suitable location for the appeal scheme when applying the spatial strategy in the LP, having regard to local and national planning policy, and the accessibility of the site to services, facilities and employment opportunities. The proposal therefore fails to accord with Policy S1 of the LP. For similar reasons the proposal would also fail to accord with the sustainability objectives of the Framework.

Living conditions of future occupiers

21. Policy H10 of the LP requires that all new dwellings, including conversions, achieve the minimum internal floorspace standards set out within the Nationally Described Space Standards (NDSS) (2015). These floorspace standards are outlined within Appendix 2 of the LP, and state that the minimum internal floorspace for a one bed, two person dwelling should be 50 square metres.
22. The Council indicate that the exact internal size of the unit would be 44 square metres, resulting in a 6 metre shortfall against the standards set by Appendix 2 and the NDSS. I note that the planning application form states that the internal floorspace would be 55 square metres. However, in the absence of substantive evidence to demonstrate this, for instance a floorplan annotating the sizes of the internal areas within the proposed dwelling, I cannot be certain of the size of the unit. In this instance, I favour the Council's calculation of the internal area. On this basis, there would be a deficient amount of internal floorspace which would result in inadequate living conditions for the occupiers of the dwelling.
23. In coming to this view, I acknowledge that the main parties agree that the proposed dwelling would benefit from satisfactory levels of outlook and natural light, and would benefit from cross ventilation. However, the significant shortfall against the space standards indicates that the future occupiers would find the home cramped, and the unit would provide wholly unsatisfactory self-contained accommodation.
24. Therefore, in this respect, it would be contrary to Policies EN4 and H10 of the LP, insofar as they require that new development should not result in a loss of amenity to proposed residents, and require compliance with the NDSS.

BNG

25. Policy EN9 of the LP requires that proposals are accompanied by a Biodiversity Statement which includes a Biodiversity Gain Plan demonstrating a biodiversity net gain of at least 20%.

26. The appellant provided an Ecology & BNG Assessment (AATP Ecological Assessment) which indicates that BNG gain would be provided on-site. However, there is limited detail to demonstrate how this would be achieved. Furthermore, the appellant's Statement of Case indicates that the proposal would achieve 10% BNG, rather than the 20% required by Policy EN9.
27. No post-development habitat plan has been submitted detailing the proposed habitats, and only limited information has been provided regarding the specific ecological enhancements to be delivered. The Council has also raised concerns about the lack of information relating to individual tree habitats, and I have been provided with no substantive evidence by the appellant to address these concerns.
28. The PPG makes clear that it would generally be inappropriate for decision makers, when determining a planning application for a development subject to BNG, to refuse an application on the grounds that the biodiversity gain objective will not be met and that decision makers may need to consider more broadly whether the biodiversity gain condition is capable of successfully being discharged.
29. However, for the reasons set out above, particularly the lack of clarity regarding the percentage of biodiversity net gain (BNG) that the appellant seeks to achieve, the evidence submitted does not satisfy me that the level of BNG indicated would be delivered in these circumstances. Consequently, based on the information before me, the proposed development would fail to conserve and enhance biodiversity at the site, and BNG would not be achieved.
30. Therefore, the proposed development would have an unacceptable effect on biodiversity. As such, it would be contrary to Policy EN9 of the LP, the aims of which are set out above.

Other considerations

31. It has been put to me that the stable is no longer required for equestrian use and has become redundant. The adjoining land was previously used as a sand school; however, this use ceased during the COVID-19 pandemic and has not resumed. Since that time, there has been very limited interest in re-using the sand school. The appellant indicates that there is no identified demand for additional stabling at this location, and the building has no realistic prospect of being brought back into its former use and will remain underutilised, possibly falling into disrepair.
32. The proposal would re-use an under-utilised existing building rather than introduce a new building in the Green Belt. Whilst the site is nearby other residential properties, I have found that it would not be a suitable location for the appeal scheme when applying the spatial strategy in the LP. Accordingly, I do not afford this factor positive weight in favour of the proposal.
33. The Framework seeks to significantly boost housing supply and the proposal in providing a new, one bed unit would contribute to the local housing supply. Due to the small scale of the proposed development, these benefits would be moderate.
34. It has been put to me that the proposal would result in improvements to the appearance and upkeep of the land. However, it seems to me that improvements and upkeep could take place regardless of whether this appeal is successful. Therefore, I afford this factor limited weight.

Green Belt Balance and Conclusion

35. Policy S3.1 of the Framework states that decisions on development proposals should apply a presumption in favour of sustainable development. It indicates that outside settlements, Policy S5 should be applied.
36. Policy S5 confirms development proposals in the Green Belt which should instead be determined in accordance with policy GB7. I have previously found that the proposal would not be inappropriate development in the Green Belt by virtue of policy GB7.1.b. of the Framework. The Framework advises that in such circumstances, where development would not be inappropriate development (through the application of policy GB7), proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework, and applying paragraph 2 of the policy.
37. Paragraph 2 of Policy S5 confirms that when applying the policy, the adverse effects are likely to substantially outweigh the benefits of a proposal where it conflicts with a national decision-making policy that requires development to be refused in specific circumstances.
38. Policy DP3.3 of the Framework is a national decision-making policy. It directs that development proposals should be refused if, without clear justification, they conflict with explicit design standards set out in the development plan. I have found that the proposal would provide a poor quality of accommodation for future occupiers. This is due to its failure to meet the internal space standards which are set out within Policy H10 of the LP. Therefore, due to the conflict with design standards, the Framework directs that the proposal should be refused.
39. In addition, I have found that the appeal site is not easily accessible by modes of transport other than private car, and would not accord with the Council's spatial strategy. It would also not deliver a policy compliant amount of BNG.
40. Cumulatively, while the other considerations put forward in favour of the proposed development have moderate weight, they do not outweigh the significant harm that would result from the identified conflicts with the Development Plan.
41. The proposal would be contrary to the development plan and the Framework taken as a whole. There are no other material considerations which indicate that the decision should be determined other than in accordance with the development plan. Therefore, for the reasons given above, I conclude that the appeal should be dismissed.

B Pattison

INSPECTOR